

ENTITLED: “PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY SWAN RANCH PUD PLANNED UNIT DEVELOPMENT TO CITY SWAN RANCH PUD PLANNED UNIT DEVELOPMENT (ORDINANCE NO. 3989) FOR LOT 4, BLOCK 2, SWAN RANCH RAIL PARK THIRD FILING, LARAMIE COUNTY, WYOMING (AT THE SOUTHWEST CORNER OF TUNDRA DRIVE AND CLEAR CREEK PARKWAY).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on February 4, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 4, Block 2, Swan Ranch Rail Park Third Filing, Laramie County, Wyoming is hereby changed to City Swan Ranch PUD Planned Unit Development (extending the original Swan Ranch PUD Planned Unit Development established by Ordinance No. 3989 to the subject property), the Regulating Plan for which is attached hereto and incorporated herein as Exhibit A.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

EXHIBIT A

CITY SWAN RANCH RAIL PARK PUD Regulating Plan for the Planned Unit Development (PUD) of Lot 4, Block 2 Swan Ranch Rail Park Third Filing

Purpose: The purpose of the Swan Ranch Rail Park PUD is to create an area for specialized commercial and industrial businesses in a rural setting where rail is the predominant reason businesses are locating in the area and where vehicular and pedestrian traffic will be highly impacted by train operations. The following provisions specify those sections of the Cheyenne Unified Development Code ("UDC") which are deleted or modified with respect to lands within this Planned Unit Development. In all other instances, the provisions of the Cheyenne UDC shall apply.

- A. **Permitted Uses.** The uses permitted in the PUD district are specified in Table 5-1 as either "permitted" or "administrative" or "conditional" under the HI district. The PUD district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the uses and to permit accessory commercial, service or office uses, which cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations. In addition to the previously described uses in Table 5-1, Zoning, the following use is permitted within this PUD:

Railroad yards and maintenance buildings.

- B. **District Standards**

Lot and Building Standards:

Lot Area: n/a

Lot Frontage: n/a

Setbacks: All buildings shall be set back 25' from all property lines adjacent to streets.

Building Height: n/a

Maximum coverage 90%

- C. **Building Design Standards.** UDC Sections 6.7, 6.8 and 6.9 do not apply to industrial land uses.

- D. **Landscaping Standards:**

Refer to UDC 6.3 except for the following exceptions:

Alternate compliance for landscaping calculation. In lieu of calculations for required landscaping in Section 6.3.4, Point System, Site Plan applications may provide the amount of landscaping required by Section 6.3.5.b, Level 2 buffer, based on the length of the property's frontage on adjacent rights of way. The landscaping may be installed along the rights-of-way to meet the requirement of Section 6.3.3.a, Landscape Setback, as well, or installed elsewhere on the site in addition to the Section 6.3.3.a landscape setback.

For the purpose of determining buffering between property in this PUD and that all other zone districts, this PUD shall be treated as if zoned HI under Table 6-10, Required Landscape Buffer Levels.

- F. **Parking, Lot Access and Circulation:**

UDC Section 6.2.4 c Bicycle Parking shall not apply.

STAFF REPORT - SUMMATION

Lot 4, Block 2, Swan Ranch Rail Park Third Filing **Zone District Map Amendment Process**

CASE NUMBER: UDC-19-00007 **SUBDIVISION CODE:** SWRP03
PREPARED BY: Tawn Hillenbrand

MEETING DATES:	February 4, 2019 – Planning Commission	Public Meeting
	February 11, 2019 – City Council	1 st Reading
	February 20, 2019 – Public Services Committee	1 st Reading
	February 25, 2019 – City Council	2 nd Reading
	March 5, 2019 – Public Services Committee	2 nd Reading
	March 11, 2019 – City Council	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map; Draft Neighbor Notification Letter; List of Neighbors to be Notified; - Submitted 12/10/2018 as the original project submission.
- Copy of the Neighbor Notification Letter – received 01/25/2019 (sent to verify mailed notice requirement was fulfilled)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on February 4, 2019, the Planning Commission recommended approval of the zone change request from County PUD to City PUD by a vote of 4-0.

STAFF RECOMMENDATION: Staff recommends approval of the zone change request from County PUD to City PUD with no recommended staff conditions.

STAFF REPORT

Lot 4, Block 2, Swan Ranch Rail Park Third Filing **Zone District Map Amendment Process**

CASE NUMBER: UDC-19-00007 **SUBDIVISION CODE:** SWRP03
PREPARED BY: Tawn Hillenbrand

OWNER Elsey Family Legacy Trust
5265 S Logan Dr.
Greenwood Village, CO 80121

AGENT: AVI, PC
c/o Bruce Perryman
1103 Old Town Lane, Ste 101
Cheyenne, WY 82009

PROJECT: Lot 4, Block 2, Swan Ranch Rail Park Third Filing

DESCRIPTION: A zone change request from County Swan Ranch PUD to City Swan Ranch PUD for land being annexed into the City.

LOCATION:

1. Legal Description: Lot 4, Block 2, Swan Ranch Rail Park Third Filing
2. Location: Located at the southwest corner of Tundra Drive and Clear Creek Parkway.
3. Address: Unaddressed.

PROPERTY SIZE: 33.41 acres

CURRENT ZONING: County Swan Ranch PUD and County HI Heavy Industrial
PROPOSED ZONING: City Swan Ranch PUD
EXISTING LAND USE: Vacant
PROPOSED LAND USE: General Industrial

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant, Vacant	Swan Ranch PUD	City
South	Vacant	Swan Ranch PUD	County
East	Agricultural, Office	Swan Ranch PUD	County
West	Railroad, Limited Industrial	Swan Ranch PUD	County

EXECUTIVE SUMMARY:

This zone change application proposes changing one lot (concurrently proposed to be annexed into the City) from County Swan Ranch PUD and County HI Heavy Industrial to City Swan Ranch PUD. The proposed City Swan Ranch PUD is an established PUD for the Swan Ranch Rail Park area and is very similar to the standard City HI Heavy Industrial zone district with the exception that industry requiring rail service can be accommodated therein. This property is currently vacant. The owner has proposed to develop the site with a facility that packages and distributes cat litter. The owner petitioned to annex to the City to connect to City water and sewer service.

PlanCheyenne generally considers HI zoning an appropriate zone in areas designated Industrial by the Future Land Use Map and this PUD is essentially HI zoning with a few modifications such as reduced lot setbacks and alternate landscaping standards.

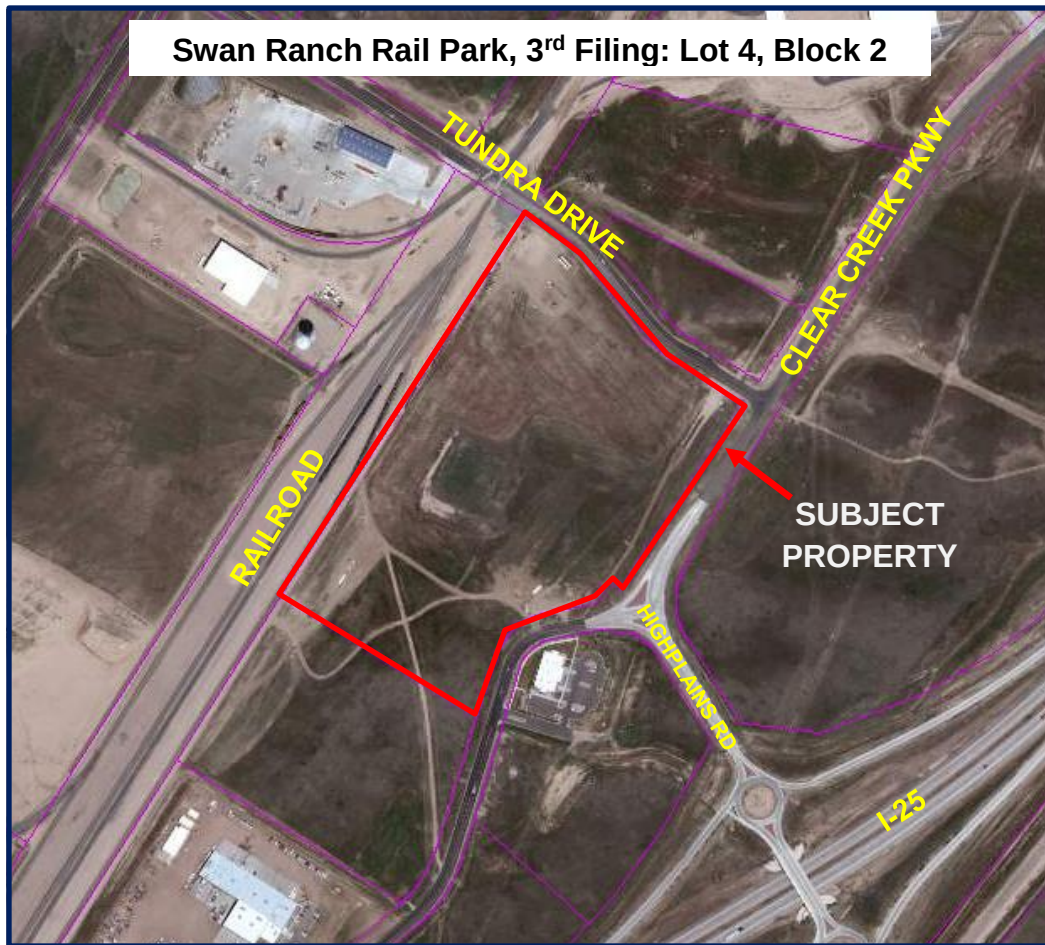
Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located at the southwest corner of Tundra Drive and Clear Creek Parkway

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph #1- Looking southeast across the property from Tundra Drive and the railroad tracks
Source: Development Staff



Photograph #1- Looking due west across the property from near the intersection of Clear Creek Pkwy and High Plains Road. Source: Development Staff

ZONE CHANGE DATA: *In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following 8 criteria of UDC Section 2.2.1.d:*

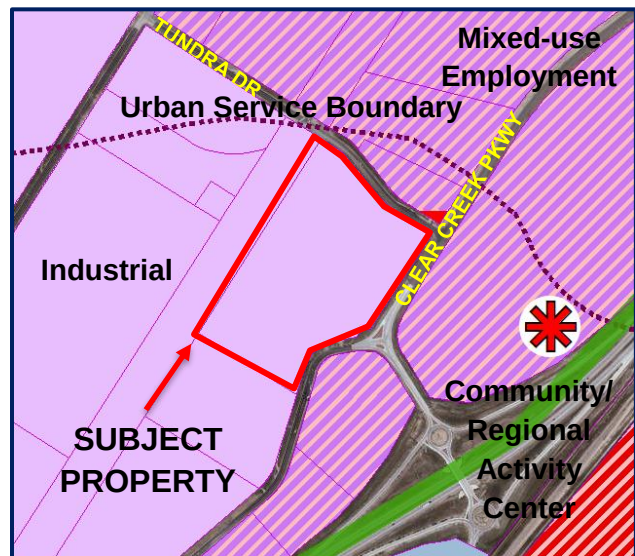
1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change.

PlanCheyenne encourages the City to grow within the Urban Service Boundary and to maximize the use of existing infrastructure. Although this property is located just outside the Urban Service Boundary, infrastructure improvements such as paved roads and utilities currently exist in this area. Multiple adjacent properties have also been developed. Annexation of this property is appropriate. The change from a County zone district to a City zone district is encouraged to occur concurrently with the annexation to clarify standards, allowed uses, and to allow property improvements.

This area is designated Industrial by the Future Land Use Map, and PlanCheyenne encourages multiple industrial zones in the Industrial category, including HI Heavy Industrial zone. The proposed PUD is an industrial-style zone and very similar to the HI zone district. Examples of primary uses anticipated in this area include distribution and warehouses as well as manufacturing and fabrications. The applicant is proposing to develop this property with a facility that packages and distributes cat litter. The proposed use is compatible with the Future Land Use Plan and PlanCheyenne.

Future Land Use



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

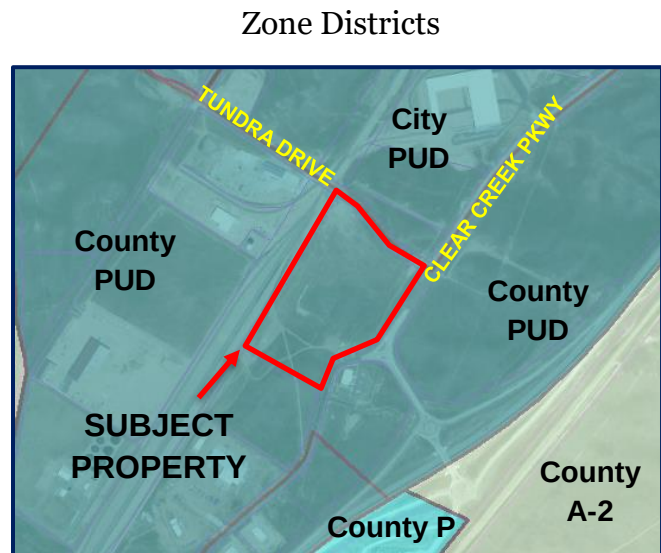
The proposed zoning designation is compatible with nearby properties as it matches the City Swan Ranch PUD zoning of City land directly to the north. The proposed zoning designation is also compatible with adjacent County land to the west, south, and east which are zoned County Swan Ranch PUD and County HI Heavy Industrial.

The Comprehensive Plan designates this area as Industrial. The proposed City Swan Ranch PUD (mimicking the HI Heavy Industrial zone districts) is an appropriate zone for areas designated Industrial according to PlanCheyenne.

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property is currently in the County and is zoned with County Swan Ranch PUD and County HI zone. As this property is being annexed into the City, a City zone is required for any development actions on the property.

The standards for the proposed City Swan Ranch PUD zone are similar to the current County Swan Ranch PUD zone district.



Map #4 – Current Zone Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

4. SUBDIVISION STANDARDS - *The ability of the subject property and surrounding vicinity to be developed per the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is proposing this zone change without proposing any changes to the streets or blocks. This zone change does not negatively affect the ability of this land and the surrounding land to meet any of the other standards found in Article 4.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards.*

According to the UDC (section 5.5.2), the HI zone district is intended for uses of very high intensity which should be isolated and buffered in order to protect the community and to ensure unimpeded operation of the use. The City PUD (section 5.6.2) is intended to permit flexibility in site and building design in accordance to an approved plan and specific ordinance. The City Swan Ranch Rail PUD is intended to create an area for specialized commercial and industrial

businesses in a rural setting where rail is the predominant reason businesses are locating to the area.

The proposed development is located in an area that is relatively undeveloped but has been designated Industrial on the Future Land Use Map. The adjacent properties to the south and north as well as an adjacent property to the east are vacant. An additional adjacent property to the east has been developed with an office building. The proposed development is within less than a quarter mile of Interstate-25 and is adjacent to the railroad, two key factors in siting Industrial areas.

The proposed City Swan Ranch PUD (which is very similar to the HI zone district) is not required to meet any design standards. Setbacks and lot coverage requirements for the current County Swan Ranch PUD zone district are identical to those of the proposed City Swan Ranch PUD zone district. The application has the ability to meet the required setbacks and lot standards established by the proposed City Swan Ranch PUD.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The applicant is proposing rezoning this parcel concurrently with being annexed into the City. The proposed zoning is analogous to the current County zoning. The applicant is proposing to develop this property with a facility that packages and distributes cat litter. The proposed development is able to meet all standards of the proposed zone district. The City Swan Ranch PUD would allow a variety of specialized commercial and industrial uses including, but not limited to, impound yards, recycling facilities, or general industrial in the event the specific development proposed in association with this zone change application is not executed.

7. REVIEW

Agencies with comments:

Development: Tawn Hillenbrand

The proposed zone change is compatible with the area. The large lot area and remote location are appropriate for the proposed City Swan Ranch PUD and HI zone districts. (FYI)

The proposed City Swan Ranch PUD is not required to meet any design standards. Setbacks and lot coverage requirements for the current County Swan Ranch PUD zone district are identical to those of the proposed City Swan Ranch PUD zone district.

Urban Planning: Tawn Hillenbrand

Although the property is located just outside the Urban Service Boundary, infrastructure improvements such as paved roads and utilities currently exist in this area. Annexation of this property is appropriate, and a change to a City zone is encouraged to occur concurrently with the annexation. This area is designated Industrial by the Future Land Use Map, and PlanCheyenne encourages multiple industrial zones in the Industrial category, including HI zone. (FYI)

Reviewing agencies without comments:

City Engineer: Amy Allen

Development: Susana Montana

Engineering Department-Traffic: Anissa Gerard

Engineering Department: Molly Bennett

GIS/Engineering/Addressing: Gary Stogsdill

Metro Planning Office (MPO): Nancy Olson

Urban Planning: Richard Zita

Reviewing agencies without response:

Parks and Recreation Admin: Sam Payne

Other Comments:

None

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety, or general welfare.*

City staff is satisfied that this proposed zone change would not harm the public health, safety, or welfare of the public.

Cc: Owner, Agent/Applicant, File

Encl: Zone Change Map

